

		presented evidence that the Motion for Sanctions was frivolous (because the Court of Appeal already rejected Frahm Defendants' primary arguments). However, Section 128.7(h) does not state that a motion for sanctions is itself subject to sanctions for frivolousness. The court therefore denies all requests for sanctions. Plaintiffs shall give notice of this ruling.
4	Hood Container Corporation vs. Riviera Beverages, LLC 30-2021-01211057	<u>Motion for Entry of Judgment</u> Plaintiff Hood Container Corporation's Motion for Entry of Judgment Based Upon Stipulated Settlement Agreement is GRANTED. Judgment shall be ENTERED in favor of Plaintiff Hood Container Corporation and against Defendant Riviera Beverages, LLC in the amount of \$10,000 plus reasonable attorney's fees of \$1,625 and reasonable costs. Plaintiff Hood Container Corporation shall prepare a proposed judgment and serve it on Defendant Riviera Beverages, LLC and submit it to the court pursuant to Rules of Court Rule 3.1590(h). The Court finds good cause to allow Plaintiff 20 days from the date of this ruling to prepare, serve, and submit the proposed judgment. Plaintiff Hood Container Corporation moves for an order to enter judgment against Defendant Riviera Beverages, LLC pursuant to the parties' stipulated settlement agreement. <u>Standard for Entry of Judgment Pursuant to Settlement Agreement</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) Thus, "Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment

		pursuant to the terms of the settlement.” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) It empowers the court presiding over the underlying case to assess whether the material terms of the settlement were reasonably certain and whether the parties expressly acknowledged that they understood and agreed to be bound by those terms. (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) In doing this, the trial court may determine disputed factual issues that have arisen regarding the settlement agreement. (See <i>Fiore v. Alvord</i> (1985) 182 Cal.App.3d 561, 566.) The trial court also may consider oral testimony or declarations. (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (<i>Hines v. Lukes</i>, 167 Cal.App.4th at 1182.) <u>Settlement Agreement and Breach</u> Plaintiff has presented evidence that the parties stipulated to a settlement agreement, the terms of which were memorialized in the Settlement and Mutual Release Agreement (Settlement Agreement). (See Declaration of Andrew M. Purdy in Supp. of Pltf.’s Mot. for Entry of J. Based Upon Stip. Settlement Agreement (Purdy Decl.), Exh. 1.) The Settlement Agreement provides that its terms would be enforceable through Code of Civil Procedure section 664.6. (See <i>id.</i>, Exh. 1 at p. 2, ¶ 2) Plaintiff also has established that Defendant Riviera Beverages, LLC breached the Settlement Agreement by failing to make the requirement payment. (See Purdy Decl., ¶ 4, Exh. 3.) Defendant has not filed an opposition and, thus, does not dispute the existence of the Settlement Agreement, the terms of the Settlement Agreement, or that Defendant has breached the agreement. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes
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		waiver of that issue]; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Therefore, the court "may enter judgment pursuant to the terms of the settlement," (Code Civ. Proc., § 664.06, subd. (a)), and the motion will be granted. <u>Attorney's Fees</u> Civil Code section 1717(a) states that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civil Code, § 1717, subd. (a).) Here, the Settlement Agreement provides for an award of attorney's incurred to enforce the agreement. (See Purdy Decl., ¶ 2, Exh. 1 at p. 6, ¶ 15.) Plaintiff has presented evidence that it has incurred attorney's fees of \$1,625, which the court finds to be reasonable. (See Purdy Decl., ¶ 6.) Plaintiff shall give notice of this ruling.
5	Hughes vs. Hughes 30-2022-01239731	<u>Motion for Discovery of Peace Officer Personnel Records</u> Plaintiff Albert Hughes III's Motion for Discovery of Peace Officer Personnel Records GRANTED in part and DENIED in part. The Los Angeles County Sheriff's Department is ORDERED, through its custodian of records, to produce to the court in Department N15 Defendant Albert Hughes Jr.'s work schedule from the period of September 14, 2004 to September 21, 2004, within 15 days of service of the notice of ruling. (See <i>People v. Mooc</i> (2001) 26 Cal.4th 1216, 1228-1229.)